

		the children would have to cross a busy street.” (Guerrero v. South Bay Union School Dist. (2003) 114 Cal.App.4th 264, 270 [distinguishing Perna].) Unlike in Hoyem or Perna, here, Plaintiff has not proffered any evidence that he should have been under Defendant SAUSD’s supervision when the sexual abuse occurred; or, that the alleged negligence had anything to do with being at school during hours when he should or should not have been there. For the foregoing reasons, the Court finds Defendant SAUSD is entitled to summary judgment on Plaintiff’s complaint. The alternative motion for summary adjudication is moot. Defendant SAUSD shall give notice of the ruling.
58	<i>Pinedo vs. CA KITCHEN FLOORS & BATHS, INC.</i>	Motion is off calendar. Case Management Conference remains on calendar.
59	<i>R & R Life is Amazing LLC vs. Daher</i>	Defendant Sibannac LLC’s motion for relief from the default entered against it on 3/11/25 is GRANTED. Defendant is to file his proposed answer no later than July 17, 2026. First, the court finds that the Sorrentino Declaration meets the requirements of an affidavit of fault such that relief is mandatory. Plaintiffs are awarded fees and costs of \$1,350. Alternatively, the court exercises its inherent equitable power to grant relief. Plaintiffs’ evidentiary objections are overruled.

Facts

On 11/15/2024, Plaintiffs filed a verified second amended complaint (“SAC”). [ROA #686.]

On 12/11/2024, Plaintiffs filed a doe amendment to name Sibannac, LLC as Doe Defendant number 9. [ROA No. 695.]

On 3/11/2025, Plaintiffs requested and obtained a default against Sibannac, LLC. [ROA #500.]

On 12/19/2025, the Court overruled in part and sustained in part K&A’s demurrer to Plaintiffs’ SAC with 20 days leave to amend as to some causes of action and without leave to amend as to other causes of action. [ROA #1014.] The Court ordered K&A to give notice.

Plaintiffs have not filed a third amended complaint. Defendant K&A has filed a motion to strike certain remaining portions of the SAC on the ground that Plaintiffs did not timely amend. [ROA # 1075.] A notice of the demurrer ruling is attached to this motion to strike. [Id., Ex. A.]

On 1/7/26 – well after default was entered, Plaintiff filed a notice of claim for punitive damages against Sibannac. [ROA #1028.] No proof of service is attached.

On 1/29/26, Defendant Sibannac filed the pending motion for relief.

Defendant seeks relief under Code of Civil Procedure section 473(b), on the ground of mistake, inadvertence, and/or excusable neglect, but also points to equity. Defendant also contends the request for entry of default was improperly served on it and it never received it.

Plaintiff and his counsel were surprised by the entry of default because the understanding was that the case was settled – Plaintiffs reneged on the settlement at the last minute. Further, despite her ethical obligations, Plaintiffs’ counsel gave Defendant’s counsel no notice of her intent to seek a default. [Sorrentino Declaration (ROA #1066), ¶¶ 3-23.]

Plaintiffs dispute that there were settlement discussions in March or April 2025. [Dibs Decl. (ROA #1180), ¶¶ 17-18.]

Legal Standard

The law favors a trial on the merits, and doubts in applying Code Civ. Proc. § 473 are resolved in favor of the party seeking relief from default. *Iott v. Franklin* (1988) 206 Cal.App.3d 521, 526. If a party moves promptly for default relief, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), only slight evidence will justify an order granting such relief. *Ibid.* For this reason, “a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.” *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696 (citations omitted).

The most fundamental of those principles is that affirmed in *Au–Yang v. Barton* (1999) 21 Cal.4th 958, 963, 90 Cal.Rptr.2d 227, 987 P.2d 697: “‘[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.’” (*Ibid.*, Citing among other cases, *Weitz v. Yankosky* (1966) 63 Cal.2d 849, 855, 48 Cal.Rptr. 620, 409 P.2d 700 (*Weitz*).) *Id.*

A plaintiff's counsel is required to notify the defendant's counsel, if known, prior to taking the defendant's default. *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 701–702 (reversing order denying relief from default); *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 137 (reversing order denying relief from default); *Shapell Social Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 84 Cal.App.5th 166, 213–214 (reversing order denying relief from default).

Code Civ. Proc. § 473(b)

Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Generally, there are two avenues to such relief under Code Civ. Proc. § 473(b). *Leader v. Health Industries of Am., Inc.*, 89 Cal.App.4th 603, 615 (2001). First, a court may grant discretionary relief upon the moving party's showing of mistake, inadvertence, surprise or excusable neglect. *Id.* at 615-616. Second, where the defaulting party's attorney files an attorney affidavit of fault the relief is mandatory. *Id.*

A motion seeking discretionary relief under Section 473(b) **must be brought within 6 months** of entry of default and/or default judgment sought be vacated. Cal. Civ. Proc. Code § 473(b).

Where there is an attorney affidavit of fault, however, relief is mandatory and the deadline to file a motion for relief as to either a default or default judgment does not even begin to run until a default judgment is entered. Code Civ. Proc. §473(b); *Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 296–297.